

25STCV15623 25STCV15623

County: los-angeles

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Case Number: 25STCV15623 Hearing Date: July 31, 2026 Dept: 735

Ernie A. Loera v. General Motors,
LLC, et al.

Defendant General Motors LLC's
Demurrer

BACKGROUND

On May 29, 2025, Plaintiff

Ernie A. Loera ("Plaintiff") filed this Lemon Law action against Defendants
General Motors, LLC ("Defendant") alleging, among other claims, breach of the
implied warranty of merchantability and fraudulent inducement – concealment. Defendant
demurs to those two causes of action.

DISCUSSION

Fourth

Cause of Action for Breach of Implied Warranty of Merchantability

Defendant

demurs the merchantability claim, arguing that it is time-barred by the statute
of limitations because "Plaintiff purchased the vehicle on March 6, 2021." (Demurrer, p. 9:1-2.)

The

Complaint does not make that allegation.

The Complaint only alleges that: "On or about March 6, 2021,
Plaintiff entered into a warranty contract with Defendant GM regarding a 2021
GMC Sierra" (Compl., 6.) Because the Complaint does not allege the

delivery date of the vehicle, the court cannot conclude that the merchantability claim is time-barred on this demurrer.

Fifth Cause of Action for Fraudulent Inducement – Concealment

Defendant demurs the fraudulent concealment claim on several grounds, none of which are persuasive.

Defendant argues that the claim is barred by the three-year statute of limitations for fraud claims. However, the Complaint alleges that Plaintiff discovered Defendants' wrongful conduct on April 17, 2025, approximately a month before filing this action on May 29, 2025. (Compl., ¶ 23.) That allegation is sufficient on this pleading stage.

Defendant also argues that Plaintiff has failed to state facts sufficient to constitute a cause of action for fraudulent concealment. Contrary to Defendant's arguments, the Complaint has alleged duty to disclose by alleging that "Plaintiff entered into a warranty contract with Defendant GM ..., " and that "Defendant GM and its agents have actively concealed the Engine Defect and failed to disclose this defect to Plaintiff at the time of purchase of the Subject Vehicle or thereafter" (Compl., ¶¶ 6, 51; see *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843.) The Complaint has also pleaded the elements of fraudulent concealment by alleging the following: Defendant knew and failed to disclose the Engine Defect at the time Plaintiff purchased the vehicle. (Compl., ¶¶ 46, 47, 51, 53.) Defendant had exclusive knowledge of the defect through sources not available to consumers. (Compl., ¶ 57.) If Plaintiff knew about the defects at the time of sale, Plaintiff would not have purchased the vehicle. (Compl., ¶¶ 54, 60.) "As a result of Plaintiff's reliance on GM and its agent's omissions and/or concealment of the Engine Defect, Plaintiff suffered an ascertainable loss of money, property, and value to the Subject Vehicle" (Compl., ¶ 55.) Those facts are sufficient.

Lastly, Defendant argues that the fraudulent concealment claim is barred by the economic loss rule. However, case law holds that the economic

loss rule does not bar claim for fraudulent inducement by concealment. (Dhital, supra, 84 Cal.App.5th at p. 843.)

CONCLUSION

The demurrer is overruled.

Defendant must file and serve its answer within ten days.

Defendant to give notice.